

OREGON STATE HOSPITAL

POLICY

SECTION 8: Safety, Security, Emergency Management **POLICY: 8.001**

SUBJECT: Video Surveillance

POINT PERSON: Director of Security

APPROVED: Jim Diegel

Interim Superintendent

DATE: MARCH 13, 2026

SELECT ONE: ☐ New policy

☐ Minor/technical revision of existing policy

☐ Reaffirmation of existing policy

☒ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy establishes parameters for the use of the Oregon State Hospital (OSH) video surveillance system.
- B. This policy applies to all Staff.

II. POLICY

- A. The primary purpose of the OSH video surveillance system is to promote the safety and security of patients, staff, and visitors.
- B. Except for unforeseen outages, damages, or necessary maintenance and repairs, OSH video surveillance equipment will be operational and recording live video at all times. As required by law, OSH shall post signs at all public entrance areas stating that the facility is under 24-hour video surveillance.
- C. The Superintendent or their designee must approve the disclosure of stored video or retained video to the extent that disclosure is permitted by applicable federal and state privacy and confidentiality. Stored and retained video of staff, patients, and any video request is confidential and may not be disclosed unless authorized by applicable federal and state confidentiality laws.
- D. To view live, stored, or retained video, a person must:
 - 1. Be authorized in writing by the Superintendent or their designee;

NOTE: A person approved by the Superintendent or their designee to view live, stored, or retained video may view the requested video only for the purpose specified either in this policy or in the written video request (Attachment A);

2. Have a valid court order; or
 3. Be otherwise authorized by this policy.
- E. Video use for purposes not identified in this policy must be approved by the Superintendent or their designee on a case-by-case basis as permitted by federal and state privacy and confidentiality laws.
- F. Unless granted an exception per this policy, video may only be viewed for purposes related to:
1. Protecting OSH property;
 2. Train staff with footage not used as evidence in investigations;
 3. Verify policies and protocols are being followed;
 4. Reportable incident investigations;
 5. Stored and retained video related directly to a criminal investigation, subpoena, or arrest may be disclosed as authorized by applicable laws;
 6. Patient safety events, including sentinel events;
 7. Seclusion or restraint events;
 8. High-liability incidents, including, but not limited to, code events;
 9. Fire and life safety investigations occurring during an episode of care;
 10. Safety accident investigations related to staff, patients, or visitors;
 11. Clinical safety;
 12. Security-related concerns;
 13. Workplace violence response; or
 14. HR investigations.
- G. Only assigned Security staff, Nursing Management, Program Directors, and Unit Administrators may monitor live video while performing their duties and while on their assigned work shift. Other access to view live video must be approved by the Superintendent or their designee on a case-by-case basis as permitted by federal and state privacy and confidentiality laws. Access to video surveillance areas is restricted to those persons authorized to view live video during the authorized period of time.
- H. Unless otherwise exempt per this policy, staff must follow Procedures A, "Video Surveillance" to request approval to view video.
- I. The following are exempt from the Superintendent's written approval process to view video (Procedures A):

1. Authorized Investigative Authorities,
 2. Security, or those assigned to Security-related functions in their regular job duties, may view live video for purposes outlined in this policy,
 3. Security management,
 4. Oregon State Police (OSP) investigators,
 5. OTIS,
 6. OSH Incident Reporting Systems Investigation (IRSI),
 7. A sanctioned group involved with a Root Cause Analysis (RCA) and/or a Clinical Administrative Debrief (CADM) process,
 8. The Assault Mitigation Workgroup,
 9. Director of Safe Together (may only be approved to view video related to training purposes),
 10. Facilities staff (acting in the course of specific job duties during camera maintenance only),
 11. Nursing Management,
 12. Unit Administrators and Program Directors,
 13. Oregon Health Authority (OHA) HR,
 14. The Psychiatric Officer of the Day (POD), Administrator on Duty (AOD), and Safety Management are exempt from the written approval process for video review purposes related to clinical safety reasons, fire and life safety reasons, and security-related concerns only. The video viewing must occur during the POD, AOD, or Safety and management's shift for an event that occurred on that shift.
- J. If Nursing Management or Unit Administrators observe concerning staff behavior that is against OSH policy or protocol, they must work with their Senior HR Business Partner to review.
- K. For the purposes of this policy, authorized investigative authorities include:
1. OSH-sanctioned investigative authorities:
 - a. Incident Response Systems Investigations (IRSI),
 - b. OSH Safety,
 - c. OSH Security,
 - d. Psychiatric Officer of the Day (POD) (may only be approved to view video related to clinical safety reasons, fire and life safety reasons, and security-related concerns),
 - e. Administrator on Duty (AOD) (may only be approved to view video related to clinical safety reasons, fire and life safety reasons, and security-related concerns),
 - f. Standards and Compliance,
 - g. A sanctioned group involved with a Root Cause Analysis (RCA) and/or a Clinical Administrative Debrief (CADM) process, and

- h. The Assault Mitigation Workgroup.
 - 2. OHA Human Resources;
 - 3. An entity with a valid court order;
 - 4. Law enforcement; and
 - 5. Office of Training, Investigations, and Safety (OTIS).
- L. Any discussion relating to viewing live, stored, or retained video is restricted to sanctioned and confidential processes and forums to be discussed only on a need-to-know basis for business purposes.
- M. Video viewing requests must be made within 28 days of the incident or event taking place.
- N. All viewing of stored or retained video must be documented in video surveillance logs that contain the contents of Attachment A. Staff are not required to use this document, but only incorporate the elements within their department's log.
- O. Union officers may request copies of the video surveillance logs and receive them in a timely manner, not to exceed 15 days after their request.
- P. OSH must keep retained video as required by applicable laws and policies and in accordance with OSH policy 2.006, "Public Records Retention and Destruction." After applicable retention periods expire, OSH may destroy retained videos as directed in the Secretary of State Retention Schedule.
 - 1. Unless an exception is permitted by law or the Superintendent, stored video shall be kept to the full extent of the video surveillance system allowance (28 days).
 - 2. Staff may retain recordings regarding authorized OSH investigations until the final resolution of the investigation.
- Q. Logs and requests pertaining to video surveillance must be stored for 3 years. This includes: accepted video request forms, denied video request forms, maintenance logs, repair request documentation, departmental video logs, and security video logs.
- R. In the event of video system equipment failure, follow Procedures B.
- S. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.

- T. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS (SEE GLOSSARY)

IV. PROCEDURES

Procedures A Video Surveillance Request

Procedures B Video System Equipment Failure

V. ATTACHMENTS

Attachment A Authorization to View and/or Release Video Surveillance Form

Attachment B Sample Video Surveillance Log

VI. RELATED OSH POLICIES AND PROTOCOLS

1.003 Incident Reporting

1.016 OSH Delegation of Authority

2.006 Public Records Retention and Destruction

2.008 Privacy and Security of Patient Information

2.012 Sentinel Events

8.033 Workplace Violence Response

Nursing Protocol 2.245 Milieu Presence and Engagement

VII. REFERENCES

42 CFR § 482.13(c)1.

45 CFR § 164.512.

Joint Commission Resources, Inc. *The joint commission comprehensive accreditation manual for hospitals*, EC.02.01.01. Oakbrook Terrace, IL: Author.

Oregon Administrative Rule §§ 407-045-0405 – 407-045-0495.

Oregon Administrative Rule § 943-045-0000.

Oregon Revised Statute § 179.040.

Oregon Revised Statute § 179.360.

Oregon Revised Statute §§ 192.553 — 192.568.

Shared Services. *HIPAA: Notice of Privacy Practices*, ODHS|OHA -100-002. Author.

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Shared Services. *Privacy*, ODHS|OHA-100-001. Author.

State v. Meredith, 96 P.3d 342(Or. 2004).